12 August 2026 (Constitution)

Detailed Notes on the Constituent Assembly Debate: Draft Article 10 (Equality of Opportunity in Public Employment)

I. Overview and Context

Date of Debate: 30th November 1948

Draft Article Under Discussion: Article 10 (which later became **Article 16** of the Constitution of India)

Presiding Officer: Mr. Vice-President (Dr. H.C. Mookherjee)

Core Issue: How to guarantee equality of opportunity in public employment while also addressing the historical exclusion of certain communities from government services.

II. Preliminary Discussions (New Article 11-B - Capital Punishment)

A. Amendment to Abolish Death Penalty

Shri Amiyo Kumar Ghosh (Bihar):

- **Argument:** Opposed incorporating the abolition of capital punishment in the Constitution.
- **Reasoning:** The State must retain the power to impose grave penalties in times of crisis. Fettering the State's hands "for all time" through the Constitution was unwise.
- **Alternative Suggestion:** Such changes should be made through the Indian Penal Code, which can be amended more easily as circumstances change.
- **Position:** Supported the *principle* of abolishing capital punishment but rejected it as a *constitutional provision*.

Shri K. Hanumanthaiya (Mysore):

- **Argument:** Opposed the amendment from the State's perspective.
- **Key Points:**
  - Referenced George Bernard Shaw's play about Joan of Arc, who preferred death over life imprisonment—suggesting that convicts may prefer death to a "dead life" in prison.
  - Argued that society is based not only on reformation but also on the "fear instinct" principle.
  - Without the death penalty, the deterrent value of punishment would be lost.
  - The possibility of early release (after 7-8 years) would "encourage the method of revenge."
  - Referenced a politically sensitive case (the Godse incident) which was interrupted by the Chair.

Mr. Vice-President's Ruling: No reference to the "particular individual" was permitted.

Dr. B.R. Ambedkar's Position: Simply stated, "I do not accept the amendment."

Result: The amendment was negatived.

III. The Main Debate: Draft Article 10

A. The Core Principle

Article 10(1) as originally drafted:

> "There shall be equality of opportunity for all citizens in matters of employment under the State."

B. The Amendments and Discussions

1. Amendment No. 338 (Mr. Mohd. Tahir, as modified by Amendment No. 77)

Mr. Mohd. Tahir's Original Amendment:

- Sought to add the word "acquisition" after "employment" in clause (1).
- Sought to add "or employment" after "office" in clause (2).

Shri M. Ananthasayanam Ayyangar's Modification (Amendment No. 77):

- Proposed substituting "in matters of employment" with "in matters relating to employment or appointment to office" in clause (1).
- Proposed inserting "employment or" before "appointment to office" in clause (2).

Accepted by Dr. Ambedkar: Yes.

Rationale: To make the language more comprehensive and clarify that both employment and appointment to office were covered.

2. Amendment No. 336 (Mr. Naziruddin Ahmad)

Proposed: Substituting clause (2) with:

> "Every citizen shall be eligible for office under the State irrespective of his religion, caste, sex, descent or place of birth."

Dr. Ambedkar's Position: Not accepted.

Result: Negatived.

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3. Amendment No. 334 (Shri Lokanath Misra)

Proposed: Deleting clauses (2), (3), and (4) entirely.

Argument:

- Clause (1) already covers all cases.
- Clause (3) (reservation for backward classes) puts a "premium on backwardness and inefficiency."
- Clause (4) is unnecessary because India is a secular state that shouldn't manage religious institutions.

Dr. Ambedkar's Position: Not accepted.

Result: Negatived.

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4. Amendment No. 339 (Prof. K.T. Shah)

Proposed: Adding "in India" after "place of birth" in clause (2).

Argument:

- Sought to reserve positions for "children of the soil."
- Referenced discriminatory practices in other Commonwealth countries like South Africa, White Australia, and White Canada.
- Argued that the country's own citizens should have the first claim on employment.

Dr. Ambedkar's Position: Not accepted.

Result: Negatived.

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5. Amendment No. 340 (Shri Jaspat Roy Kapoor)

Proposed: Adding "or residence" after "place of birth" in clause (2).

Argument:

- Every citizen should have equal opportunity for employment anywhere in the country.
- Growing provincialism (e.g., "Bengal for Bengalis," "Madras for Madras") was threatening national unity.
- Allegation that some provinces were imposing absurd residency requirements (e.g., 52 years).
- The unity and solidarity of the country must be preserved "at all costs."

Accepted by Dr. Ambedkar: Yes (as modified by Amendments Nos. 81 and 82).

Significance: This amendment recognized that discrimination based on residence was as harmful as discrimination based on religion, caste, or sex.

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6. Amendment No. 81 (Shri K.M. Munshi)

Proposed: A verbal amendment to No. 340, substituting "or residence" with simply "residence" to maintain grammatical consistency.

Accepted by Dr. Ambedkar: Yes.

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7. Amendment No. 82 (Shri Alladi Krishnaswami Ayyar)

Proposed Insertion of New Clause (2a):

> "Nothing in this article shall prevent Parliament from making any law prescribing in regard to a class or classes of employment or appointment to an office under any State for the time being specified in the First Schedule or any local or other authority within its territory, any requirement as to residence within that State prior to such employment or appointment."

The Difficulty Raised by Shri H.V. Kamath:

- Article 1 defines "States" as those specified in Parts I, II, and III of the First Schedule.
- Part IV of the First Schedule contains Andaman and Nicobar Islands, which are "territories," not "States."
- The amendment's language ("under any State for the time being specified in the First Schedule") was ambiguous.

Shri K.M. Munshi's Clarification:

- The heading of the First Schedule is "States and Territories."
- Parts I, II, and III refer to States with autonomous governments.
- Part IV (Andaman and Nicobar) refers to territories directly controlled by the Centre.
- Therefore, "any State" in the amendment naturally refers only to Parts I, II, and III.
- The Centre cannot discriminate between residents of different provinces for its own services.

Dr. Ambedkar's Justification of the "Residence" Amendment:

- **Principle:** Common citizenship throughout India implies that residence should NOT be a qualification for employment.
- **Reality Check:** Provinces already had varying residency rules (10 years, 7 years, "domicile," etc.).
- **The Problem:** If different provinces had different rules, it would create chaos.
- **The Solution:** Only Parliament should have the power to prescribe residential qualifications, ensuring uniformity.
- **Purpose:** To prevent people from becoming "mere birds of passage" moving from province to province seeking jobs without any roots.

Result: The amendment was adopted.

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8. Amendment No. 342 (Shri M. Ananthasayanam Ayyangar)

Proposed: Adding "or discriminated against" after "ineligible" in clause (2).

Argument:

- Discrimination can occur not only at the time of appointment but also in promotions and other post-appointment matters.
- "Ineligible" does not cover these cases.

Accepted by Dr. Ambedkar: Yes.

Result: Adopted.

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9. The "Backward Classes" Debate

The Three Conflicting Viewpoints (Identified by Dr. Ambedkar):

1. **Equality of Opportunity:** Every citizen should be free to apply and be judged solely on merit.
2. **No Reservations:** There should be no reservations of any kind for any class.
3. **Special Provisions:** Communities historically excluded from administration must have guaranteed entry.

Dr. Ambedkar's Dilemma:

- If reservations are granted to all communities demanding them, the total reserved seats might reach 70%.
- This would destroy the very principle of equality of opportunity.
- Therefore, reservations must be limited to a **minority of seats**.

The Justification for the Word "Backward":

- The original fundamental right passed by the Assembly did not contain the word "backward."
- The Drafting Committee inserted it to prevent the exception (reservation) from "eating up the rule (equality)."
- Without such a qualifier, the exception would be so large that the rule would cease to have any meaning.

Definition of "Backward":

> "A backward community is a community which is backward in the opinion of the Government."

Justiciability:

- Dr. Ambedkar believed the matter would be justiciable.
- If a State Government reserved so many seats that equality was destroyed, one could approach the Supreme Court.
- The Court would decide whether the Government acted "in a reasonable and prudent manner."

C. Arguments on the "Backward" Clause

Supporters of Reservation

Shri Ari Bahadur Gurung (West Bengal):

- Sought inclusion of Gurkhas in the definition of "backward."
- Argued that Gurkhas domiciled in India owe allegiance to the Government of India, not Nepal.
- They had fought in Kashmir and Hyderabad and deserved equal opportunity in civil services.

Shri R.M. Nalavade (Bombay):

- Expressed support for the clause on behalf of the depressed classes.
- Expressed concern that "backward classes" was too vague and might exclude Scheduled Castes.
- Pointed out that even with reservation provisions in provinces, the Scheduled Castes were not getting adequate representation.

Dr. Dharam Prakash (United Provinces):

- Suggested substituting "backward" with "Scheduled Castes."
- Argued that the administrative machinery was still communally biased.
- Supported reservation only for the "real depressed classes," not for the majority community.
- Only when they "reach the same level" should reservation be opposed.

Shri Chandrika Ram (Bihar):

- Supported the word "backward" and cited census reports from 1921 and 1931 as definitions.
- Divided society into three sections:
  1. **Highest:** Caste Hindus
  2. **Middle:** Backward Classes
  3. **Lowest:** Scheduled Castes/Harijans
- Argued that backward classes were denied political rights and deserved reservation in legislatures as well.
- Criticized Socialist members for opposing reservation for backward classes.

Shri P. Kakkan (Madras):

- Supported the clause on behalf of "poor Harijan candidates."
- Highlighted that higher officers selected "only their own people, not the Harijans."
- Asked for special steps for reservation in Police and Military services, citing Harijan bravery in Kashmir.

Shri V.I. Muniswami Pillay (Madras):

- Expressed confusion about the word "backward."
- Emphasized that the communities left out of administration "should not be left out."
- Quoted Sardar Patel: "Not only justice must be done to the Harijans, but their case must be treated with generosity."
- Clarified that it is "not the object of any of the leaders of the Harijan community to perpetuate the communal bogey."

Shri T. Channiah (Mysore):

- Explained the South Indian understanding of "backward classes":
  1. **Socially backward**
  2. **Educationally backward**
- Distinguished Mysore's "A Class vacancies" (open to all) from "B Class vacancies" (reserved for backward classes).
- Opposed Pandit Kunzru's 10-year time limit, saying reservation should be for "150 years" (the period during which opportunities were denied).

Shri H.J. Khandekar (C.P. & Berar):

- Strongly supported the clause but wanted "scheduled castes" explicitly mentioned.
- Highlighted that Scheduled Caste candidates are "ordinarily ignored" despite qualifications.
- Pointed out that even with 12.5% reservation for higher services and 16.5% for lower services, not even 1% of candidates were being recruited.
- Requested that Public Service Commissions have Scheduled Caste representatives and relax qualifications for Harijan candidates.

Sardar Hukam Singh (East Punjab):

- Identified a potential conflict between Article 10 and Article 296 (minorities rights).
- Article 10(1) says "open competition and the topmost men would be taken in."
- Article 296 says "claims of all minorities shall be taken into consideration."
- Questioned whether minority claims could be considered if they don't succeed in open competition.
- Asked whether Article 10 overrides Article 296.

Mr. Mohamed Ismail Sahib (Madras):

- Pointed out that in Madras, "backward" had a technical meaning, referring to 150+ Hindu communities.
- Questioned whether the clause would include minority communities (Muslims, Christians, Scheduled Castes) who are also backward and underrepresented.
- Opposed Pandit Kunzru's 10-year time limit: "The measure should not be period of time" but whether the community has "advanced and come forward."
- Countered the "bogey of communalism": Communalism comes when people are denied rights. Reservation, by ensuring representation, creates "contentment and harmony."

Critics of the "Backward" Clause

Shri Damodar Swarup Seth (United Provinces):

- Moved to delete clause (3) entirely.
- Argued that reservation is "the very negation of efficiency and good Government."
- It is "not easy to define precisely the term 'backward.'"
- Reservation would "give rise to castism and favouritism."
- Suggested that necessary facilities and concessions should be given to improve educational qualifications, but appointments should be solely on "merit and qualification."

Pandit Hirday Nath Kunzru (United Provinces):

- Proposed a 10-year time limit on reservation.
- **Three Arguments:**
  1. The word "backward" is undefined.
  2. Special provisions should not operate "indefinitely."
  3. Legislative representation is more important than service representation, and the Constitution limits that to 10 years (Article 305). Therefore, service reservation should also have a time limit.
- Warned that the clause would encourage "fissiparous tendencies" and that classes would claim backwardness to get protection.
- Quote: "I venture to think that article 10 would not be in conformity with the intention of the Constitution to remove all those conditions on account of which special protection is necessary."

Prof. K.T. Shah:

- Moved amendment to add the word "managing" in clause (4) (religious institutions).
- Concerned that "in connection with" might be too broad and include honorary positions or donations.
- Wanted to ensure that only managing affairs, not all connections, should be restricted by religious qualifications.

Shri T.T. Krishnamachari (Madras):

- Gave a sharp critique of the entire article:
  - Called it a "paradise for lawyers."
  - Quoted Prof. Ivor Jennings (Vice-Chancellor of Ceylon University) who said the chapter on fundamental rights is "a paradise for lawyers."
  - Questioned the practical meaning of "equality of opportunity" for illiterates.
  - Blamed the "residence" amendment for creating all the problems.
  - Criticized the Drafting Committee for producing "loose drafting."
  - Made a sarcastic remark: "I cannot congratulate the Drafting Committee on putting this particular word in."
  - Suggested that "backward" could be defined by caste, community, religion, literacy, or economic status—no one knows.
  - Actually expressed a personal view: "the retention of titles is beneficial" (referring to Sir A.K. Menon).

IV. Dr. B.R. Ambedkar's Concluding Speech (in Full)

A. Introductory Remarks

Sir, I am going to say at the outset, before I deal with the specific questions that have been raised in the course of the debate, that I cannot accept amendment No. 334 moved by Mr. Misra; nor can I accept the two amendments moved by my friend, Mr. Naziruddin Ahmad, Nos. 336 and 337. I am prepared to accept the amendment of Mr. Imam No. 338, as amended by amendment No. 77 moved by Mr. Ananthasaynam Ayyangar. I am also prepared to accept the amendment of Mr. Kapoor, viz., No. 340, as amended by amendments Nos. 81 and 82 moved by my friends Mr. Munshi and Mr. Alladi Krishnaswami Ayyar.

B. Response to the "Paradise for Lawyers" Criticism

I do not think that I am called upon to say anything with regard to amendments Nos. 334, 336 and 337. Such observations, therefore, as I shall make in the course of my speech will be confined to the question of residence about which there has been so much debate and the use of the word "backward" in clause (3) of article 10. My friend, Mr. T. T. Krishnamachari, has twitted the Drafting Committee that the Drafting Committee, probably in the interests of some members of that Committee, instead of producing a Constitution, have produced a paradise for lawyers. I am not prepared to say that this Constitution will not give rise to questions which will involve legal interpretation or judicial interpretation. In fact, I would like to ask Mr. Krishnamachari if he can point out to me any instance of any Constitution in the world which has not been a paradise for lawyers. I would particularly ask him to refer to the vast store house of law reports with regard to the Constitution of the United States, Canada and other countries. I am therefore not ashamed at all if this Constitution hereafter for purposes of interpretation is required to be taken to the Federal Court. That is the fate of every Constitution and every Drafting Committee. I shall therefore not labour that point at all.

C. Explanation of the "Residence" Amendment

Now, with regard to the question of residence. The matter is really very simple and I cannot understand why so intelligent a person as my friend Mr. T. T. Krishnamachari should have failed to understand the basic purpose of that amendment.

It is the feeling of many persons in this House that, since we have established a common citizenship throughout India, irrespective of the local jurisdiction of the provinces and the Indian States, it is only a concomitant thing that residence should not be required for holding a particular post in a particular State because, in so far as you make residence a qualification, you are really subtracting from the value of a common citizenship which we have established by

this Constitution or which we propose to establish by this Constitution. Therefore in my judgment, the argument that residence should not be a qualification to hold appointments under the State is a perfectly valid and a perfectly sound argument.

At the same time, it must be realised that you cannot allow people who are flying from one province to another, from one State to another, as mere birds of passage without any roots, without any connection with that particular province, just to come, apply for posts and, so to say, take the plums and walk away. Therefore, some limitation is necessary. It was found, when this matter was investigated, that already today in very many provinces rules have been framed by the provincial governments prescribing a certain period of residence as a qualification for a post in that particular province. Therefore the proposal in the amendment that, although as a general rule residence should not be a qualification, yet some exception might be made, is not quite out of the ordinary. We are merely following the practice which has been already established in the various provinces. However, what we found was that while different provinces were laying down a certain period as a qualifying period for posts, the periods varied considerably. Some provinces said that a person must be actually domiciled. What that means, one does not know. Others have fixed ten years, some seven years and so on. It was therefore felt that, while it might be desirable to fix a period as a qualifying test, that qualifying test should be uniform throughout India. Consequently, if that object is to be achieved, viz., that the qualifying residential period should be uniform, that object can be achieved only by giving the power to Parliament and not giving it to the local units, whether provinces or States. That is the underlying purpose of this amendment putting down residence as a qualification.

D. Explanation of the Word "Backward"

Now, Sir, to come to the other question which has been agitating the members of this House, viz., the use of the word "backward" in clause (3) of article 10, I should like to begin by making some general observations so that members might be in a position to understand the exact import, the significance and the necessity for using the word "backward" in this particular clause.

If members were to try and exchange their views on this subject, they will find that there are three points of view which it is necessary for us to reconcile if we are to produce a workable proposition which will be accepted by all.

Of the three points of view, the first is that there shall be equality of opportunity for all citizens. It is the desire of many Members of this House that every individual who is qualified for a particular post should be free to apply for that post, to sit for examinations and to have his qualifications tested so as to determine whether he is fit for the post or not and that there ought to be no limitations, there ought to be no hindrance in the operation of this principle of equality of opportunity.

Another view mostly shared by a section of the House is that, if this principle is to be operative—and it ought to be operative in their judgment to its fullest extent—there ought to be no reservations of any sort for any class or community at all, that all citizens, if they are qualified, should be placed on the same footing of equality so far as the public services are concerned. That is the second point of view we have.

Then we have quite a massive opinion which insists that, although theoretically it is good to have the principle that there shall be equality of opportunity, there must at the same time be a provision made for the entry of certain communities which have so far been outside the administration.

As I said, the Drafting Committee had to produce a formula which would reconcile these three points of view, firstly, that there shall be equality of opportunity, secondly that there shall be reservations in favour of certain communities which have not so far had a 'proper look-in' so to say into the administration. If honourable Members will bear these facts in mind—the three principles, we had to reconcile—they will see that no better formula could be produced than the one that is embodied in sub-clause (3) of article 10 of the Constitution; they will find that the view of those who believe and hold that there shall be equality of opportunity, has been embodied in sub-clause (1) of Article 10. It is a generic principle. At the same time, as I said, we had to reconcile this formula with the demand made by certain communities that the administration which has now—for historical reasons—been controlled by one community or a few communities, that situation should disappear and that the others also must have an opportunity of getting into the public services.

E. The Danger of Over-Reservation

Supposing, for instance, reservations were made for a community or a collection of communities, the total of which came to something like 70 per cent of the total posts under the State and only 30 per cent are retained as the unreserved. Could anybody say that the reservation of 30 per cent as open to general competition would be satisfactory from the point of view of giving effect to the first principle, namely, that there shall be equality of opportunity? It cannot be in my judgment. Therefore the seats to be reserved, if the reservation is to be consistent with sub-clause (1) of Article 10, must be confined to a minority of seats. It is then only that the first principle could find its place in the Constitution and effective in operation.

If honourable Members understand this position that we have to safeguard two things namely, the principle of equality of opportunity and at the same time satisfy the demand of communities which have not had so far representation in the State, then, I am sure they will agree that unless you use some such qualifying phrase as "backward" the exception made in favour of reservation will ultimately eat up the rule altogether. Nothing of the rule will remain. That I think, if I may say so, is the justification why the Drafting Committee undertook on its own shoulders the responsibility of introducing the word "backward" which, I admit, did not originally find a place in the fundamental right in the way in which it was passed by this Assembly. But I think honourable Members will realise that the Drafting Committee which has been ridiculed on more than one ground for producing sometimes a loose draft, sometimes something which is not appropriate and so on, might have opened itself to further attack that they produced a Draft Constitution in which the exception was so large, that it left no room for the rule to operate. I think this is sufficient to justify why the word "backward" has been used.

F. On Minorities and Justiciability

With regard to the minorities, there is a special reference to that in Article 296, where it has been laid down that some provision will be made with regard to the minorities. Of course, we did not lay down any proportion. That is quite clear from the section itself, but we have not altogether omitted the minorities from consideration.

Somebody asked me: "What is a backward community"? Well, I think any one who reads the language of the draft itself will find that we have left it to be determined by each local Government. A backward community is a community which is backward in the opinion of the Government.

My honourable friend, Mr. T. T. Krishnamachari asked me whether this rule will be justiciable. It is rather difficult to give a dogmatic answer. Personally I think it would be a justiciable matter. If the local Government included in this category of reservations such a large number of seats; I think one could very well go to the Federal Court and the Supreme Court and say that the reservation is of such a magnitude that the rule regarding equality of opportunity has been destroyed and the court will then come to the conclusion whether the local Government or the State Government has acted in a reasonable and prudent manner.

Mr. Krishnamachari asked: "Who is a reasonable man and who is a prudent man? These are matters of litigation". Of course, they are matters of litigation, but my honourable Friend, Mr. Krishnamachari will understand that the words "reasonable persons and prudent persons" have been used in very many laws and if he will refer only to the Transfer of Property Act, he will find that in very many cases the words "a reasonable person and a prudent person" have very well been defined and the court will not find any difficulty in defining it. I hope, therefore that the amendments which I have accepted, will be accepted by the House.

V. The Final Article 10 (As Amended)

After the debate and voting, the following article was added to the Constitution:

Article 10 (as amended):

(1) There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.

(2) No citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State.

(2a) Nothing in this article shall prevent Parliament from making any law prescribing, in regard to a class or classes of employment or appointment to an office under any State for the time being specified in the First Schedule or any local or other authority within its territory, any requirement as to residence within that State prior to such employment or appointment.

(3) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens who, in the opinion of the State, are not adequately represented in the services under the State.

(4) Nothing in this article shall affect the operation of any law which provides that the incumbent of an office in connection with the affairs of any religious or denominational institution or any member of the governing body thereof shall be a person professing a particular religion or belonging to a particular denomination.

VI. Subsequent Evolution (Post-Constitution)

A. The Reservation Debate Continues

The "Exception" Theory:

- For several years, the Supreme Court treated Article 16(4) as an exception to Article 16(1).
- The understanding was that while equality was the rule, reservation was a permissible exception to that rule.

The Shift:

- In the **Indra Sawhney v. Union of India** case (1992), the Supreme Court fundamentally recharacterized the relationship.
- It held that Article 16(4) is **not an exception** to Article 16(1) but an **enabling provision**.
- This is based on the principle of **substantive equality**—that true equality requires treating unequal situations differently.
- Under this view, Scheduled Castes, Scheduled Tribes, and Other Backward Classes are a **different class** under reasonable classification.
- Therefore, giving them reservation is not an exception to equality but a fulfillment of equality.

Why Article 16(4) is NOT an Exception (The Indra Sawhney Logic):

Earlier View	Later View (Indra Sawhney)
Equality is the rule	Equality is the rule
Reservation is an exception to equality	Reservation is a means to achieve equality
Reservation deviates from merit	Reservation creates a level playing field
Backward classes are like others	Backward classes are a separate class

B. The "Residence" Exception in Practice

Constitutional Position:

- Article 16(2) generally prohibits discrimination based on residence.
- Article 16(3) allows Parliament to create exceptions for certain classes of employment or appointment to an office.

Why Parliament, Not States?

- States would be selfish and discriminate in favor of their own residents.
- A uniform national standard is needed to preserve the value of common citizenship.
- The power was given to Parliament to prevent provincialism from undermining national unity.

Connecting to Article 301:

- Article 301 states that "trade, commerce and intercourse throughout the territory of India shall be free."
- This is part of the same constitutional philosophy: India is one economic and social unit.

- Just as goods should flow freely across borders, citizens should be able to move and work freely.

VII. Key Quotes from the Debate

Dr. B.R. Ambedkar:

> "Equality is a general rule, while reservation is an exception."

> "Unless you use some such qualifying phrase as 'backward,' the exception made in favour of reservation will ultimately eat up the rule altogether. Nothing of the rule will remain."

> "A backward community is a community which is backward in the opinion of the Government."

> "The seats to be reserved must be confined to a minority of seats. It is then only that the first principle could find its place in the Constitution and effective in operation."

Sardar Hukam Singh:

> "What would be the fate of the minorities?"

Mr. Mohamed Ismail Sahib:

> "Communalism does not come in because people want their rights. When people find that they are not adequately represented, they rightly feel that they must have due representation and then such a demand comes up."

Shri H.J. Khandekar:

> "Though there are commissions... our candidates will not be able to compete with the candidates of the Brahmin community or the so-called Savarna Hindus."

Shri V.I. Muniswami Pillay:

> "The uplift [of Scheduled Castes] will still stand over [without reservation]."

Pandit Hirday Nath Kunzru:

> "It is not desirable that... any special provisions laid down for [backward classes] should operate indefinitely."

Shri T.T. Krishnamachari (Critique):

> "This chapter of fundamental rights is a paradise for lawyers. And, as a piece of loose drafting, article 10 takes the palm."

VIII. Conclusion

The debate on Draft Article 10 was a defining moment in India's constitutional history. It established:

1. **The Principle of Equality:** No citizen can be denied public employment based on religion, race, caste, sex, descent, place of birth, or residence.
2. **The Exception for Backward Classes:** The State can make provisions for reservation in appointments or posts for any backward class of citizens.
3. **The "Residence" Limitation:** While residence discrimination is generally prohibited, Parliament can create exceptions to ensure both national unity and reasonable state autonomy.
4. **The Philosophical Framework:** Equality is the rule; reservation is a **limited exception** designed to make representation meaningful.

Dr. Ambedkar's Central Legacy:

- Dr. Ambedkar is often seen as a leader of Dalits, but his vision was much broader.
- He was a **nationalist** who balanced social justice with administrative efficiency.
- His goal was to uplift the backward classes without destroying the principle of merit.
- He recognized that India's strength lies in **unity, efficiency, and justice**—not in any one of these alone.

The Continuing Relevance:

- The debate over reservation continues in contemporary India.
- The tension between equality and affirmative action remains unresolved.
- The Supreme Court's shift from the "exception" theory to the "substantive equality" theory in Indra Sawhney reflects the ongoing evolution of this principle.
- Dr. Ambedkar's vision—that the backward should be uplifted without sacrificing national unity—remains the guiding light for constitutional interpretation in this area.